

KOSTIANTYN MARS
6001 W Parmer Ln, Ste 370 448
Austin, TX 78727
Phone Number: 202.505.9444
Email: legal@marsjustice.io

KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

KOSTIANTYN MARS

Plaintiff,

vs.

STATE OF CALIFORNIA; GAVIN NEWSOM,
in his official capacity as Governor;

BETH MCGOWEN and JULIE EMEDE,
in their official capacities as Presiding Judges;

SANTA CLARA COUNTY SUPERIOR COURT;

HANNA MARS;

and all related officials,
judges, and agents acting under color of law,

Defendants.

) Case No. :

)
) **CONSOLIDATED EVIDENCE**
) **BINDER - EXHIBIT A**
) **VOLUME 9 of 10**

) **IN SUPPORT OF**

) **NOTICE OF REMOVAL,**
) **CIVIL RICO COMPLAINT,**
) **EMERGENCY MOTION FOR TRO,**
) **MOTION TO DISMISS CRIMINAL**
) **CASE B2402220 WITH PREJUDICE**

) **DATE:**

) **TIME:**

) **DEPT:**

**CONSOLIDATED EVIDENCE BINDER - EXHIBIT A - VOLUME 9 of 10
(RACKETEERING PATTERN + STATE LEVEL COVER-UP)**

In Support of:

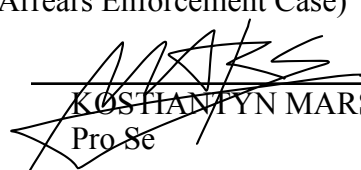
- **Notice of Removal** (28 U.S.C. §§ 1331, 1343, 1441, 1443, 1455)
- **Civil RICO Complaint** (18 U.S.C. §§ 1961–1968)
- **Emergency Motion for Temporary Restraining Order**
- **Motion to Dismiss Criminal Case B2402220 With Prejudice** (Fed. R. Civ. P. 65(b))

Related State Court Matters Removed:

- **B2402220** (Criminal Case, Santa Clara County Superior Court)
- **22DV000779** (Domestic Violence Case, Santa Clara County Superior Court)
- **22FL003144** (Family Law / Divorce / Custody Case)
- **24CV441024** (Name Change Case, Santa Clara County Superior Court)
- **200000002626999** (DCSS Wage Garnishment and Arrears Enforcement Case)

Respectfully submitted,

DATED: June 4, 2026


KOSTIANTYN MARS
Pro Se

1 **TABLE OF CONTENTS (EXHIBITS IN THIS VOLUME)**

2 **SET 6 - PATTERN OF RACKETEERING AND STATE-LEVEL COVER-UP**

3 Exhibit	Description	Page
4 <u>A-56</u>	Public Record of Racketeering by Serhii “Gordon” Nahorny (Father of Respondent) and Ivan “Pedofile” Omelchenko in Ukraine (2015) - Repeating Same Pattern of Racketeering in Attack on Petitioner (2022)	3
5		
6 <u>A-57</u>	Public Record of Racketeering and Seizure of Real Estate Property Under Color of Law by Disqualified Judge James Towery in Statements of Disqualification Filed Against Him (2017 - 2022)	11
7		
8 <u>A-58</u>	Tania Schrag - Denial of Fifty-Four (54) RICO Complaints Filed with California Commission on Judicial Performance	12
9		
10 <u>A-59</u>	Fifty-Four (54) RICO Complaints Filed with California Commission on Judicial Performance - All Denied by Tania Schrag	17
11		
12 <u>A-60</u>	California Bar Association - Denial of Multiple Complaints Filed with State Bar of California Regarding Organized Racketeering by Attorneys Steven Dinneen and Nancy Roberts together with Their Criminal Associates Disqualified Judges Lowney, Flint, Towery	20
13		
14 <u>A-61</u>	Correspondence to High-Level California and Federal Executive Officials Requesting Intervention and Federal Oversight Over Removal of The California Cases From Santa Clara County	26
15		
16		
17		
18		
19		
20		
21		
22		
23		
24		
25		
26		
27		
28		

EXHIBIT A-56

PUBLIC RECORD OF RACKETEERING

BY SERHII “GONDON” NAHORNYI (FATHER OF RESPONDENT)

AND IVAN “PEDOFIL” OMELCHENKO IN UKRAINE (2015) -

REPEATING THE SAME PATTERN OF RACKETEERING

IN ATTACK ON PETITIONER (2022)

Description: Public media reports and records from 2015 documenting racketeering activity by Serhii Nahorny (father of Respondent) and Ivan Omelchenko against their former business partner Serhii Rybalko in Ukraine. The reports describe the use of fabricated criminal charges, unlawful arrests, threats, extortion, and the involvement of law enforcement and judicial officials to facilitate the seizure of assets and hostile takeover of a business. This exhibit is offered to illustrate a pattern of racketeering under 18 U.S.C. § 1961 et seq. that is repeated in the targeted racketeering attack against Petitioner in 2022 - 2025 (including unlawful arrest in 2024, fabricated criminal case, unlawful seizure of assets and property, aggravated kidnapping of Petitioner’s son Max Mars and removal of Max from Petitioner’s custody using void orders issued by criminals from Santa Clara Mafia Cartel on positions of disqualified judges acting outside jurisdiction and corrupt police officers committing threats, theft and unlawful arrests)

Date: 2015 - 2022

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/racketeering-by-ukrainian-cartel-kodlo-gondona.pdf>

Scan QR Code for instant download of the complete document:



INTERNAL CHRONOLOGICAL INDEX

Item	Date	Document	Page
<u>1</u>	2014	Wikipedia Article About Business “SI Group” - Documenting Targeted Racketeering Attack by Criminal Syndicate of Ivan Omelchenko and Serhii Nahorny against Their Business Partner Serhii Rybalko Resulting in Hostile Takeover of Business	5
<u>2</u>	2015	Agravery Article Documenting Racketeering Attack and Hostile Takeover of Business from Serhii Rybalko by Ukrainian Organized Criminals Ivan Omelchenko and Serhii Nahorny (Father of Respondent)	8
<u>3</u>	2016	Ukrainian Tax Authority Records Confirming Serhii Nahorny’s Official Position in SI Group Tans	10

Description: Wikipedia article and related public records concerning alleged racketeering activity targeting co-founder Serhii Rybalko of SI Group (also referred to as S.Group). The materials document fabricated criminal charges, involvement of law enforcement and tax authorities, asset seizures, and the resulting hostile takeover of the business by criminal syndicate of Ivan Omelchenko and Serhii Nahorny. This exhibit is submitted to illustrate a pattern of racketeering conduct under 18 U.S.C. § 1961 et seq. that is substantially similar to the pattern of activity documented in the present case.

Full document:

Scan QR Code for instant download of the document:



ВІКІПЕДІЯ
Вільна енциклопедія

S.Group

Unverified version (what to do?)

Material from Wikipedia, the free encyclopedia.

S.Group is a group of Ukrainian companies that produce food products and household goods. The group is one of the leading Ukrainian manufacturers of snack products (peanuts, pistachios, packaged sunflower and pumpkin seeds, potato and pita chips, extrusion), as well as a major exporter to the countries of Central Asia and the Middle East.

History

S.Group companies have been operating on the market since 1995 as part of SIGroup, founded by entrepreneurs Serhiy Rybalka and Ivan Omelchenko. However, after the division of SIGroup, the new structure entered the market on August 1, 2014. S.Group includes some of the production facilities, structural divisions, and trademarks of the "merged" company.

Structure

The group structure includes LLC "Prodexport-2009", LLC "Snek-Export" (<https://web.archive.org/web/20151213162605/http://sgroup.dp.ua/biznes-napravleniya/proizvodstvo-snekov/>), LLC "Clean Planet" (<https://web.archive.org/web/20151212182540/http://sgroup.dp.ua/biznes-napravleniya/celyulozno-bumazhnaya-produkciya/>), DP "YUMAK", LLC "Agrosakhinvest 2002", LLC "New Company 2006", LLC "Faeton-Trans" (<https://web.archive.org/web/20151222092504/http://sgroup.dp.ua/biznes-napravleniya/transportnye-perevozki-2/>) (logistics company). Production facilities are located in the city of Synelnykovo, Dnipropetrovsk region (key lines), the city of Dnipro (bread factory), the city of

S.Group



Type	group of companies
Branch	production of snacks, consumer goods and production of pulp and paper products
Founded	1995
Headquarters	 Ukraine, Dnipro
Key individuals	Chairman of the Board of Directors Rybalka Dmytro Viktorovych
Product	TM «SEMKI» (http://sgroup.dp.ua/brands-r/tm-semki-ru/), TM «Snekkín» (http://sgroup.dp.ua/brands-r/tm-snekkín-ru/), TM «Kozatska slava» (http://sgroup.dp.ua/brands-r/tm-kozatska-slava-ru/), TM «My Fisherman» (http://sgroup.dp.ua/brands-r/tm-my-rybalka-ru/), TM «Macho» (http://sgroup.dp.ua/brands-r/tm-macho-ru/), TM «KartoFan» (http://sgroup.dp.ua/brands-r/tm-kartofan-ru/), TM «Red Pistachio» (http://sgroup.dp.ua/brands-r/tm-red-ru/), TM «Lavka» (http://sgroup.dp.ua/brands-r/tm-lavka-ru/), TM «Fantasy» (http://sgroup.dp.ua/brands-r/tm-fantasy-ru/), TM «Fantee» (http://sgroup.dp.ua/brands-r/tm-fantee-ru/)
Employees	2 thousand people
Subsidiaries	LLC "Prodexport-2009", LLC "Snek-Export", LLC "Clean Planet", SE "YUMAK", LLC "Agrosakhinvest 2002", LLC "New Company 2006", LLC "Faeton-Trans"

<https://uk.wikipedia.org/wiki/S.Group>

1/2

Mena , Chernihiv region (chips). The company also has 3 export trade representative offices in Kazakhstan , Kyrgyzstan , Georgia .

sgroup.dp.ua (<http://sgroup.dp.ua/ua/>)

Export

Up to 30% of production in the snack segment and up to 15% in the household goods segment is exported . The company's products are supplied to Kazakhstan , Kyrgyzstan , Georgia , Moldova , Belarus , Tajikistan , Iran , Saudi Arabia , Morocco , Algeria , Mongolia , Uzbekistan , Latvia , Lithuania , Estonia , Israel , Bulgaria . The entire product range is exported to most countries.

Conflict with ATB

The cause of the corporate conflict between S.Group and ATB-Market was a family conflict between the founders of the two structures — Sergey Rybalko and his former father-in-law Gennady Butkevych (father of Rybalko's ex-wife Hanna Butkevych). In 2013 , with the assistance of Butkevych, the tax and police carried out numerous searches and stopped production at Rybalko's enterprises, which forced him to leave the country. Law enforcement agencies accused the company of tax evasion. After the Revolution of Dignity, the persecution stopped.

Currently, the parties are in a court economic dispute regarding the repayment by ATB of a debt of over UAH 110 million for the delivered goods. In turn, ATB accuses its opponents of creating an organized criminal group with the aim of seizing someone else's property. According to S.Group, in November 2015, the General Director of ATB-Market LLC, Dmytro Yevteyev, filed a corresponding application with the Prosecutor's Office of the Dnipropetrovsk Region . However, the application was accepted only by the Prosecutor General's Office .

In court, copies of documents are provided to confirm the absence of debt, which S.Group calls falsified. ATB does not provide the originals. The case is under consideration in the Kyiv Commercial Court of Appeal .

Retrieved from <https://uk.wikipedia.org/w/index.php?title=S.Group&oldid=39513858>

EXHIBIT A-56 - ITEM 2

**AGRAVERY ARTICLE DOCUMENTING RACKETEERING ATTACK AND
HOSTILE TAKEOVER OF BUSINESS FROM SERHII RYBALKO
BY UKRAINIAN ORGANIZED CRIMINALS IVAN OMELCHENKO
AND SERHII NAHORNYI (FATHER OF RESPONDENT)**

Description: Article published by Agravery detailing documented racketeering conduct targeting business co-founder Serhii Rybalko. The article describes the use of fabricated criminal charges, arrest and search warrants, and the involvement of law enforcement authorities to facilitate the seizure of assets and hostile takeover of the business. This exhibit is submitted to illustrate a pattern of racketeering activity under 18 U.S.C. § 1961 et seq. that is substantially similar to the pattern alleged in the present case.

Dates Range: 2015

Full document:

<https://marsjustice.io/federal-removal/si-group-racketeering-attack-agravery-2015-12-07.pdf>

Scan QR Code for instant download of the document:



Home (/) ☐ Publications, Recycling

December 7, 2015 - 07:20

New life after divorce: the story of S.Group

PUBLICATIONS (/UK/POSTS/SECTION/SHOW/PUBLICATIONS) - RECYCLING (/UK/POSTS/SECTION/SHOW/PROCESSING)

Comments 0 (<https://agravery.com/uk/posts/show/nove-zitta-pista-rozluccenna-istoria-sgroup>)



(<http://storage.agravery.com/uploads/files/COLLAGEs/S.I.Group.jpg>)

/ Agravery (Agravery)

How to benefit from disagreements with a partner and strengthen your position in the market, despite the crisis.

"We managed to get into the top ten with this product," — Dmitry Rybalka, Chairman of the Board of Directors of S.Group, twirls a pack of TM "Sneikin" crackers in his hands and examines the funny character on the package. A year and a half ago, after 19 years of work in the snack market, he and his brother Sergey had to rebuild half of the production processes from scratch after "divorcing" with their partner. "Having set out on our own, we were able not only to increase production, but also to release fundamentally new products," he adds.

How the roads diverged

Entrepreneurs Serhiy Rybalka and Ivan Omeichenko have been friends since they were 14 years old. In the early 1990s, they decided to start a joint business - they were among the first to import imported household chemicals to Ukraine. After some time, they founded the company SiGroup, which very quickly became a leader in the production of snacks. The successful development of the joint business was stopped by Rybalka's family conflict with his former father-in-law - co-owner of the country's largest supermarket chain "ATB-Market" Gennady Butkevych.

"I was searched, drugs were planted, and many criminal cases were opened. Our products were "exhibited" from "ATB", which had a critical impact on sales. It probably seemed to the partner that I, being in prison with one foot, was dragging the business to the bottom. He decided to separate, I learned about it as a fait accompli," says Serhiy Rybalka. Thus, two experienced players, once united by one goal, emerged on the Ukrainian snack market: S.Group and Snack Production. Ivan Omeichenko refused to comment on the story of the divorce.

From monopolist to leader

It was not easy sailing on its own. Rybalka considers the division unfair, primarily because his ex-partner Omeichenko, who was responsible for personnel in the joint business, took the main part of the team with him. In addition, S.Group inherited the debts of ATB-market for the delivered goods totaling \$15 million. However, the main difficulty was to divide the brands.

Before the division, SiGroup was a leader and de facto monopolist in the production of various types of snack products. S.Group received Semki seeds, Kozatskaya razvoja peanuts (later Kozatskaya slava), pistachios and chips under the Macho and Red brands, as well as the entire pulp and paper business and the logistics company Phaelon-Trans. Snack Production received the flagship Flint crackers and Morski seafood, and the Khutorok consumer goods line. "Our proposal was quite peaceful: everyone develops the group of products that remained after the division, we work in our riches, we do not interfere with each other. But my former partner decided otherwise and began to develop the areas that were transferred from SiGroup to our structure. Of course, we also decided to expand the lost areas, as well as develop new ones," says Dmitry Rybalka. Thus, the S.Group portfolio includes crackers, croutons, pita chips, potato chips, extrusion under the "Sneikin" brand, seafood "My Fisherman", and Lavka seeds.

EXHIBIT A-56 - ITEM 3

**UKRAINIAN TAX AUTHORITY RECORDS CONFIRMING SERHII NAHORNY Y'S
OFFICIAL POSITION IN SI GROUP TRANS**

Description: Official records from the Ukrainian tax authority confirming that Serhii Nahornyy served as the registered director of SI Group Trans, a department of SI Group, during the period when the company underwent significant changes in ownership and control. These records also reflect the official connection between Serhii Nahornyy and Ivan Omelchenko in relation to the company. This exhibit is submitted to document the formal corporate positions held by the individuals during the relevant timeframe of targeted racketeering attack and hostile takeover of business.

Date: 2016

Full document:

<https://marsjustice.io/federal-removal/si-group-irs-record-nahornyy-serhii.pdf>

Scan QR Code for instant download of the document:



Full name

Nagornyy Serhiy Mykolayovych

Director

Company name	Type of activity	State
<u>State Enterprise</u> "KUMIB"	<u>84.22 Defence activities</u>	in a state of suspension
<u>PE "COMFORT"</u>	20.30.0 Manufacture of wooden structures and joinery	discontinued
<u>LLC "S.I. GROUP</u> <u>TRANS"</u>	<u>52.29 Other support activities for</u> <u>transportation</u>	discontinued
Director		

EXHIBIT A-57

**PUBLIC RECORD OF RACKETEERING AND
SEIZURE OF REAL ESTATE PROPERTY UNDER COLOR OF LAW BY
DISQUALIFIED JUDGE JAMES TOWERY
IN STATEMENTS OF DISQUALIFICATION FILED AGAINST HIM
(2017 - 2022)**

Description: Public record of racketeering and seizure of real estate property under color of law by disqualified judge James Towery, replicated in racketeering attack on Petitioner: kidnapping of Petitioner's son Max Mars, seizure of Petitioner's apartments, car and assets. According to investigative reports James Towery enforced selling his victims' real estate property via trust owned by James Towery family for personal gains.

Date Range: 2017 - 2022

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/towery-disqualification-2022-12-06.pdf>

Scan QR Code for instant download of the complete document:



Excerpt from Statement of Disqualification confirming coercive orders selling property and business to Towery's criminal associates:

Page 5, paragraph 5:

"... Judge Towery appeared at a January 20, 2015 hearing on an ex parte motion to sell the Gilroy property filed by opposing attorney Brad Baugh. ... At the Jan. 20, 2015 ex parte hearing, I objected to Judge Towery making orders to sell our Gilroy property on the grounds it would disrupt my livelihood..."

Page 6, paragraph 6:

"Judge Towery overruled my objection. He ordered me and my business to vacate the Gilroy property.

Judge Towery's orders compelled the sale of the print magazine to local, competing publisher Dan Pulcrano at a fire-sale price."

EXHIBIT A-58

TANIA SCHRAG - DENIAL OF FIFTY-FOUR (54) RICO COMPLAINTS FILED WITH CALIFORNIA COMMISSION ON JUDICIAL PERFORMANCE

Description: Tania Schrag - Repetitive Denial of Fifty-Four (54) RICO Complaints Filed with California Commission on Judicial Performance about aggravated kidnapping, child trafficking, extortion and racketeering committed by organized group of criminals from Santa Clara Mafia Cartel including three disqualified judges Lowney, Flint, Towery and presiding judge Beth McGowen.

Date Range: 2022 - 2025

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/cjp/denial-of-cjp-complaints.pdf>

Scan QR Code for instant download of the complete document:



LIST OF DENIALS OF CJP COMPLAINTS

Item	Extortion cover	Date
1	Denial of 50 CJP complaints against Presiding Judge Beth McGowen, Disqualified Judge Stephen Lowney and their criminal associates Kuhnle, Williams, Clark by Tania Schrag	2024-10-24
2	Denial of CJP complaints against disqualified judge Lowney by Tania Schrag	2024-05-23
3	Denial of CJP complaints against disqualified judge Flint by Tania Schrag	2023-12-14

INTERNAL CHRONOLOGICAL INDEX

Item	Title	Page
<u>1</u>	Denial of 50 CJP complaints against Presiding Judge Beth McGownen, Disqualified Judge Stephen Lowney and their criminal associates Kuhnle, Williams, Clark by Tania Schrag	14
<u>2</u>	Denial of CJP complaints against disqualified judge Lowney by Tania Schrag	15
<u>3</u>	Denial of CJP complaints against disqualified judge Flint by Tania Schrag	16

EXHIBIT A-58 - ITEM 1
DENIAL OF 50 CJP COMPLAINTS
AGAINST PRESIDING JUDGE BETH MCGOWNEN,
DISQUALIFIED JUDGE STEPHEN LOWNEY,
AND THEIR CRIMINAL ASSOCIATES KUHNLE, WILLIAMS, CLARK
BY TANIA SCHRAG
(2024-10-24)

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/cjp/denial-of-50-complaints-2024-10-24.pdf>

Scan QR Code for instant download of the complete document:



October 24, 2024

Kostiantyn Mars
211 Hope Street, #391751
Mountain View, CA 94041

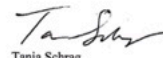
Dear Kostiantyn Mars:

At its October 2024 meeting, the Commission on Judicial Performance voted to close your complaints received February 28, July 18, and July 30, 2024, including your further correspondence received in July and August 2024.

After considering all the information, the commission determined that there was insufficient support for the allegations of impropriety in your complaints and that judicial misconduct could not be established by clear and convincing evidence, as is required in commission proceedings and your case has been closed.

Your July and August submissions are also considered further correspondence to complaints that you submitted concerning two different California judicial officers (which the commission voted to close in December 2023 and May 2024). Your submissions have been considered in order to determine whether there is any basis for action by this commission. It has been concluded that the contents of the letters do not provide grounds for proceeding further. Your submissions do not support a basis for finding judicial misconduct.

Very truly yours,


Tania Schrag
Staff Counsel

TS:ams/L102424Mars

Confidential under California Constitution,
Article VI, Section 18, and Commission Rule 102

EXHIBIT A-58 - ITEM 2
DENIAL OF CJP COMPLAINTS
AGAINST DISQUALIFIED JUDGE STEPHEN LOWNEY
BY TANIA SCHRAG
(2024-05-23)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/cjp/denial-of-complaints-against-lowney-2024-05-23.pdf>

Scan QR Code for instant download of the complete document:



May 23, 2024

Kostiantyn Mars
P.O. Box 8081
San Jose, CA 95155

Dear Kostiantyn Mars:

At its May 2024 meeting, the Commission on Judicial Performance voted to close your complaint received February 28, 2024.

After considering all the information before it about this matter, the commission determined that there was insufficient support for the allegations of impropriety in your complaint and that judicial misconduct could not be established by clear and convincing evidence, as is required in commission proceedings.

Your letter has also been considered further correspondence to your August 7, 2023 complaint in order to determine whether there is any basis for action by this commission. It has been concluded that the contents of the letter do not provide grounds for proceeding further. Your submission does not support a basis for finding judicial misconduct.

Very truly yours,


Tania Schrag
Staff Counsel

TS:rk/L052324Mars

Confidential under California Constitution,
Article VI, Section 18, and Commission Rule 102

EXHIBIT A-58 - ITEM 3
DENIAL OF CJP COMPLAINTS
AGAINST DISQUALIFIED JUDGE ANDREA FLINT
BY TANIA SCHRAG
(2024-05-23)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/cjp/denial-of-complaints-against-flint-2023-12-14.pdf>

Scan QR Code for instant download of the complete document:



December 14, 2023

Kostiantyn Mars
P.O. Box 8081
San Jose, CA 95155

Dear Kostiantyn Mars:

At its December 2023 meeting, the Commission on Judicial Performance voted to close your complaint received August 7, 2023, including your further correspondence received August 22, September 9, September 11, September 14, September 16, October 25, November 7, November 8, November 16, and November 20, 2023.

After considering all the information before it about this matter, the commission determined that there was insufficient support for the allegations of impropriety in your complaint and that judicial misconduct could not be established by clear and convincing evidence, as is required in commission proceedings.

We have also received your further correspondence dated December 9, 2023. This recent submission also does not provide a basis for commission proceedings.

We appreciate your time and effort in bringing this matter to the commission's attention.

Very truly yours,

A handwritten signature in black ink, appearing to read "Tania Schrag".

Tania Schrag
Staff Counsel

TS:ams/L121423Mars

Confidential under California Constitution,
Article VI, Section 18, and Commission Rule 102

EXHIBIT A-59

FIFTY-FOUR (54) RICO COMPLAINTS

FILED WITH CALIFORNIA COMMISSION ON JUDICIAL PERFORMANCE - ALL DENIED BY TANIA SCHRAG

Description: Fifty-four (54) RICO Complaints Filed with California Commission on Judicial Performance - All Denied by Tania Schrag.

Date Range: 2022 - 2025

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/cjp/cjp-complaints-list.pdf>

Scan QR Code for instant download of the complete document:



LIST OF CJP RICO COMPLAINTS DENIED BY TANIA SCHRAG

Item	Complaint No.	Date	Judge	Denied by	Link to download
1	5747	2023-09-09	Flint	Tania Schrag	Link to download
2	5763	2023-09-11	Flint	Tania Schrag	Link to download
3	In person	2023-09-14	Flint	Tania Schrag	Link to download
4	5791	2023-09-16	Flint	Tania Schrag	Link to download
5	6109	2023-11-08	Flint	Tania Schrag	Link to download
6	6165	2023-11-16	Flint	Tania Schrag	Link to download
7	6193	2023-11-20	Flint	Tania Schrag	Link to download
8	6312	2023-12-09	Flint	Tania Schrag	Link to download
9	6933	2024-02-28	Lowney	Tania Schrag	Link to download
10	7993	2024-07-17	Lowney	Tania Schrag	Link to download
11	7994	2024-07-17	Lowney	Tania Schrag	Link to download
12	8000	2024-07-17	Lowney	Tania Schrag	Link to download
13	8008	2024-07-18	Lowney	Tania Schrag	Link to download

1	14	8009	2024-07-18	Lowney	Tania Schrag	Link to download
2	15	8011	2024-07-18	Lowney	Tania Schrag	Link to download
3	16	8013	2024-07-18	Lowney	Tania Schrag	Link to download
4	17	8019	2024-07-20	Lowney	Tania Schrag	Link to download
5	18	8020	2024-07-20	Lowney	Tania Schrag	Link to download
6	19	8021	2024-07-20	Lowney	Tania Schrag	Link to download
7	20	8022	2024-07-20	Lowney	Tania Schrag	Link to download
8	21	8024	2024-07-20	Lowney	Tania Schrag	Link to download
9	22	8025	2024-07-20	Lowney	Tania Schrag	Link to download
10	23	8026	2024-07-21	Lowney	Tania Schrag	Link to download
11	24	8027	2024-07-21	Lowney	Tania Schrag	Link to download
12	25	8031	2024-07-21	Lowney	Tania Schrag	Link to download
13	26	8046	2024-07-22	Lowney	Tania Schrag	Link to download
14	27	8050	2024-07-22	Lowney	Tania Schrag	Link to download
15	28	8051	2024-07-22	Lowney	Tania Schrag	Link to download
16	29	8052	2024-07-22	Lowney	Tania Schrag	Link to download
17	30	8054	2024-07-22	Lowney	Tania Schrag	Link to download
18	31	8058	2024-07-23	Lowney	Tania Schrag	Link to download
19	32	8059	2024-07-23	Lowney	Tania Schrag	Link to download
20	33	8067	2024-07-23	Lowney	Tania Schrag	Link to download
21	34	8076	2024-07-23	Lowney	Tania Schrag	Link to download
22	35	8079	2024-07-23	Lowney	Tania Schrag	Link to download
23	36	8086	2024-07-24	Lowney	Tania Schrag	Link to download
24	37	8109	2024-07-26	Lowney	Tania Schrag	Link to download
25	38	8112	2024-07-27	Lowney	Tania Schrag	Link to download
26	39	8123	2024-07-30	Lowney	Tania Schrag	Link to download
27	40	8130	2024-07-30	Lowney	Tania Schrag	Link to download
28	41	8147	2024-07-30	Lowney	Tania Schrag	Link to download
	42	8148	2024-07-31	Lowney	Tania Schrag	Link to download
	43	8155	2024-02-23	Lowney	Tania Schrag	Link to download
	44	8158	2024-03-21	Lowney	Tania Schrag	Link to download
	45	8167	2024-06-17	Lowney	Tania Schrag	Link to download

46	8169	2024-06-17	Lowney	Tania Schrag	Link to download
47	8170	2024-06-17	Lowney	Tania Schrag	Link to download
48	8171	2024-06-14	Lowney	Tania Schrag	Link to download
49	8174	2024-06-17	Lowney	Tania Schrag	Link to download
50	8204	2024-08-06	Lowney	Tania Schrag	Link to download
51	8208	2024-08-07	Lowney	Tania Schrag	Link to download
52	8209	2024-08-07	Lowney	Tania Schrag	Link to download
53	8213	2024-08-07	Lowney	Tania Schrag	Link to download
54	8276	2024-08-15	Lowney	Tania Schrag	Link to download

EXHIBIT A-60

CALIFORNIA BAR ASSOCIATION - DENIAL OF MULTIPLE COMPLAINTS

FILED WITH STATE BAR OF CALIFORNIA

REGARDING ORGANIZED RACKETEERING BY ATTORNEYS

STEVEN DINNEEN AND NANCY ROBERTS

TOGETHER WITH THEIR CRIMINAL ASSOCIATES

DISQUALIFIED JUDGES LOWNEY, FLINT, TOWERY

Description: California Bar Association - Denial of Multiple Complaints Filed with State Bar of California Regarding Organized Racketeering by Attorneys Steven Dinneen and Nancy Roberts together with Their Criminal Associates Disqualified Judges Lowney, Flint, Towery.

Date Range: 2023 - 2025

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/cjp/cjp-complaints-list.pdf>

Scan QR Code for instant download of the complete document:



INTERNAL CHRONOLOGICAL INDEX

Item	Title	Page
<u>1</u>	Denial of California State Bar complaint against Dinneen and Roberts by Esther Fallas (02/01/2024)	22
<u>2</u>	Denial of California State Bar complaint against Dinneen by Veronika Barsegyan (04/04/2024)	23
<u>3</u>	California State Bar complaint against Dinneen and Roberts	24
<u>4</u>	California State Bar complaint against Dinneen	25

EXHIBIT A-60 - ITEM 1
DENIAL OF CALIFORNIA STATE BAR COMPLAINT
AGAINST DINNEEN AND ROBERTS BY ESTHER FALLAS (02/01/2024)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/calbar/fallas-denial-against-roberts-23-O-26303.pdf>

Scan QR Code for instant download of the complete document:



The State Bar
of California

180 Howard Street, San Francisco, CA 94105

OFFICE OF CHIEF TRIAL COUNSEL

415-538-2037

esther.fallas@calbar.ca.gov

February 1, 2024

Delivered via email

Kostiantyn Mars
PO Box 8081
San Jose CA 95155
Email: constantine.mars@gmail.com

RE: Case Number: 23-O-26303
Respondent: Nancy Lee Roberts

Dear Kostiantyn Mars:

The State Bar's Office of Chief Trial Counsel has reviewed your complaint against Nancy Lee Roberts to determine whether there are sufficient grounds to prosecute a possible violation of the State Bar Act and/or Rules of Professional Conduct.

In your complaint you state that Nancy Lee Roberts is the opposing counsel in your family law matter. You alleged that Nancy Lee Roberts is suspected of bribing the judge in your matter, and thus has a conflict of interest. Additionally, you alleged that Nancy Lee Roberts falsified court documents, lied to the court, and is facilitating child abductions.

Based on our evaluation of the information provided, we are closing your complaint against Nancy Lee Roberts. In order to investigate allegations of lawyer misconduct, the State Bar needs specific facts which, if proved, would establish a violation of the lawyer's ethical duties. Conclusions based on speculation and not supported by facts are insufficient to warrant investigation. We have determined that your complaint does not present facts to support investigation of your complaint.

Additionally, please be advised that the State Bar cannot review or change the decisions of the civil courts. If you are not satisfied with the outcome of your matter, the court having the proper jurisdiction, including possibly a Court of Appeal, is the appropriate place to raise any

San Francisco Office
180 Howard Street
San Francisco, CA 94105

www.calbar.ca.gov

Los Angeles Office
845 S. Figueroa Street
Los Angeles, CA 90017

EXHIBIT A-60 - ITEM 2
DENIAL OF CALIFORNIA STATE BAR COMPLAINT AGAINST DINNEEN BY
VERONIKA BARSEGYAN (04/04/2024)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/calbar/barsegyan-denial-against-dinneen-24-O-13251.pdf>

Scan QR Code for instant download of the complete document:

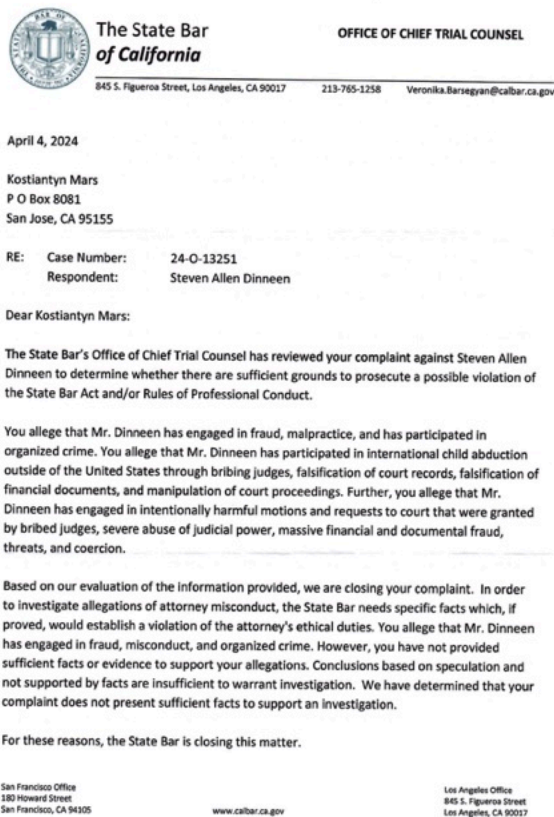


EXHIBIT A-60 - ITEM 3

CALIFORNIA STATE BAR COMPLAINT AGAINST DINNEEN AND ROBERTS

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/calbar/calbar-complaint-dinneen-roberts-23-O-26303-03-03-2024.pdf>

Scan QR Code for instant download of the complete document:



The State Bar of California Attorney Misconduct Complaint

Date: 3/3/2024

Your Contact Information		
Title: Mr.		
First name: Kostiantyn	Middle name:	Last name: Mars
Address: PO Box 8081		
City: San Jose	State: CA	ZIP code: 95155
Email: constantine.mars@gmail.com		
Your telephone numbers:		
Home: (408) 518-0088	Work:	Cell:

Attorney's Information		
First name: Steven	Middle name: Allen	Last name: Dinneen
Address: 247 N 3rd St		
City: San Jose	State: CA	ZIP code: 95112
Email:	CA Bar License #: 254494	
Primary phone:		Other phone:
Cell phone:	Website:	
Have you or a member of your family complained to the State Bar about this attorney previously?		
☐ Yes ☒ No		
Did you hire the attorney?		
☒ Yes ☐ No		
Does this complaint involve allegations of theft or misappropriation of funds?		
☒ Yes ☐ No		
Does this complaint involve allegations of attorney misconduct against a person 65 years of age or older?		
☒ Yes ☐ No		
Does this complaint involve allegations of attorney misconduct against a person who is incapacitated, infirm, disabled, incarcerated, an immigrant, or a minor?		
☒ Yes ☐ No		
Does this complaint involve allegations that the attorney has abandoned a client?		

1

EXHIBIT A-60 - ITEM 4
CALIFORNIA STATE BAR COMPLAINT AGAINST DINNEEN

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/calbar/calbar-complaint-dinneen-24-O-13251-2024-03-03.pdf>

Scan QR Code for instant download of the complete document:



 The State Bar of California Attorney Misconduct Complaint	Date: 3/3/2024
--	----------------

Your Contact Information		
Title: Mr.		
First name: Kostiantyn	Middle name:	Last name: Mars
Address: PO Box 8081		
City: San Jose	State: CA	ZIP code: 95155
Email: constantine.mars@gmail.com		
Your telephone numbers:		
Home: (408) 518-0088	Work:	Cell:

Attorney's Information		
First name: Steven	Middle name: Allen	Last name: Dinneen
Address: 247 N 3rd St		
City: San Jose	State: CA	ZIP code: 95112
Email:	CA Bar License #: 254494	
Primary phone:		Other phone:
Cell phone:	Website:	

Have you or a member of your family complained to the State Bar about this attorney previously?

☐ Yes ☒ No

Did you hire the attorney?

☒ Yes ☐ No

Does this complaint involve allegations of theft or misappropriation of funds?

☒ Yes ☐ No

Does this complaint involve allegations of attorney misconduct against a person 65 years of age or older?

☒ Yes ☐ No

Does this complaint involve allegations of attorney misconduct against a person who is incapacitated, infirm, disabled, incarcerated, an immigrant, or a minor?

☒ Yes ☐ No

Does this complaint involve allegations that the attorney has abandoned a client?

EXHIBIT A-61
CORRESPONDENCE TO HIGH-LEVEL
CALIFORNIA AND FEDERAL EXECUTIVE OFFICIALS
REQUESTING INTERVENTION AND FEDERAL OVERSIGHT OVER
REMOVAL OF THE CALIFORNIA CASES FROM SANTA CLARA COUNTY

Description: Correspondence to High-Level California and Federal Executive Officials Requesting Intervention and Federal Oversight Over Removal of The California Cases From Santa Clara County.

Date Range: 2022 - 2025

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/letters-to-california-and-federal-executive-officials.pdf>

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LIST OF LETTERS TO OVERSIGHT AGENCIES

Item	Letter to Authority	Date	Link to download
1	President Joe Biden	2024-08-15	Link to download
2	Governor of California Gavin Newsom	2024-08-15	Link to download
3	California Attorney General Rob Bonta	2024-08-15	Link to download
4	Federal Bureau of Investigation	2024-08-15	Link to download
5	Commission on Judicial Performance	2024-08-15	Link to download
6	DOJ Civil Rights Division	2024-08-15	Link to download
7	Ukraine Consulate General	2024-08-15	Link to download

INTERNAL CHRONOLOGICAL INDEX

Item	Title	Page
<u>1</u>	Letter to President Joe Biden	28
<u>2</u>	Letter to Governor of California Gavin Newsom	29
<u>3</u>	Letter to California Attorney General Rob Bonta	30
<u>4</u>	Letter to Federal Bureau of Investigation	31
<u>5</u>	Letter to Commission on Judicial Performance	32
<u>6</u>	Letter to DOJ Civil Rights Division	33
<u>7</u>	Letter to Ukraine Consulate General	34

EXHIBIT A-61 - ITEM 1

LETTER TO PRESIDENT JOE BIDEN (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/letter-to-president-biden-2024-08-15.pdf>

Scan QR Code for instant download of the complete document:



Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
(408) 518 0088
Constantine.Mars@gmail.com
08/14/2024

The Honorable Joe Biden
President of the United States
The White House
1600 Pennsylvania Avenue NW
Washington, D.C. 20500

SUBJECT: REQUEST FOR FEDERAL INTERVENTION AND INVESTIGATION INTO JUDICIAL CORRUPTION, RACKETEERING, AND EXTORTION IN SANTA CLARA COUNTY

Dear President Biden,

I write to bring your urgent attention to an entrenched criminal enterprise within the Santa Clara County Superior Court. High-ranking judicial officers and attorneys in this county have conspired to engage in [racketeering and extortion under the guise of legal authority](#). Given the severity and scope of this judicial misconduct, I respectfully request immediate federal intervention and a comprehensive investigation by the Department of Justice and the FBI.

Background

The criminal activities in question involve multiple violations of federal statutes, including:

1. **Racketeering and Extortion (18 U.S.C. § 1961 - RICO Act; 18 U.S.C. § 1951 - Hobbs Act):** Judges Stephen Lowney, Andrea Flint, and James Towery, along with Attorney Nancy Roberts, have engaged in a pattern of racketeering. These individuals abused their judicial authority to extort money, issue fraudulent court orders, and facilitate the kidnapping of my son, Max Mars, for the purpose of international abduction to Ukraine. Their acts of coercion, financial exploitation, and judicial fraud constitute violations of the RICO and Hobbs Acts.

EXHIBIT A-61 - ITEM 2

LETTER TO GOVERNOR OF CALIFORNIA GAVIN NEWSOM (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/letter-to-california-governor-newsom-2024-08-15.pdf>

Scan QR Code for instant download of the complete document:



Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
(408) 518 0088
Constantine.Mars@gmail.com
08/14/2024

Governor Gavin Newsom
Governor of California
California State Capitol
1021 O Street, Suite 9000
Sacramento, CA 95814

SUBJECT: URGENT REQUEST FOR INTERVENTION AND INVESTIGATION INTO JUDICIAL CORRUPTION, RACKETEERING, AND EXTORTION WITHIN SANTA CLARA COUNTY SUPERIOR COURT

Dear Governor Newsom,

I am writing to urgently request your direct intervention in addressing systemic corruption and organized criminal activity that has deeply penetrated the judicial system in Santa Clara County. As outlined in the enclosed documentation, I have been the target of a criminal enterprise involving high-ranking judicial officers and attorneys operating under the guise of legal authority.

These individuals have engaged in [racketeering, extortion, and judicial misconduct in violation of both federal and state law](#). Given the severity and scope of this misconduct, I am requesting an immediate independent investigation by state authorities, under your direction, and the disqualification of the involved judicial officers from further participation in any legal proceedings.

Background and Allegations

The judicial corruption involves, but is not limited to, the following:

1. Racketeering and Extortion under Color of Law: Judges Stephen Lowney, Andrea Flint, and James Towery, along with Attorney Nancy Roberts, have participated in a systematic campaign of racketeering and extortion. Their actions appear to be in violation of the Racketeer Influenced and Corrupt Organizations (RICO) Act (18 U.S.C. § 1961 et seq.) and the Hobbs Act (18 U.S.C. § 1951), as they have conspired to commit extortion through fraudulent judicial orders aimed at depriving me of my legal rights, property, and custody of my child.

EXHIBIT A-61 - ITEM 3

LETTER TO CALIFORNIA ATTORNEY GENERAL ROB BONTA (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/letter-to-california-attorney-general-bonta-2024-08-15.pdf>

Scan QR Code for instant download of the complete document:



Kostiantyn Mars

211 Hope St 391751

Mountain View, CA 94041

(408) 518 0088

Constantine.Mars@gmail.com

08/14/2024

Attorney General Rob Bonta,
Attorney General of California
California Department of Justice
P.O. Box 944255
Sacramento, CA 94244-2550

**SUBJECT: REQUEST FOR STATE INTERVENTION TO HALT JUDICIAL RACKETEERING IN
SANTA CLARA COUNTY SUPERIOR COURT**

Dear Attorney General Bonta,

I am writing to urgently request your intervention in addressing pervasive [judicial corruption and racketeering within the Santa Clara County Superior Court](#). Over the past year, I have been a victim of a criminal enterprise involving multiple judges, attorneys, and litigants who have engaged in systematic extortion, fraud, and gross violations of my civil rights.

Summary of the Situation:

1. Judicial Racketeering and Corruption

Judges Stephen Lowney, Andrea Flint, James Towery, and Presiding Judge Beth McGowen have conspired with attorneys Nancy Roberts and Steven Dinneen in a scheme involving bribes, fraudulent court orders, and coercive tactics. These actions have been used to extort money from me, deprive me of my parental rights, and facilitate the international abduction of my son, Max Mars.

EXHIBIT A-61 - ITEM 4

LETTER TO FEDERAL BUREAU OF INVESTIGATION (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/fbi-tip-child-trafficking-racketeering-2024-08-15.pdf>

Scan QR Code for instant download of the complete document:



Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
(408) 518 0088
Constantine.Mars@gmail.com
08/14/2024

Federal Bureau of Investigation (FBI)
935 Pennsylvania Avenue, NW
Washington, D.C. 20535-0001
(202) 324-3000

SUBJECT: REQUEST FOR FEDERAL INVESTIGATION, WITNESS PROTECTION PROGRAM, AND IMMEDIATE JUDICIAL DISQUALIFICATION

Dear Director Christopher Wray and Federal Bureau of Investigation,

I am writing to urgently request a federal investigation into a deeply rooted criminal enterprise operating within the [Santa Clara County Superior Court](#). This enterprise, involving high-ranking judicial officers and attorneys, has engaged in [racketeering, extortion, and systematic abuse of judicial power](#). Due to the severe corruption within the local system, I respectfully request that this investigation be conducted solely by federal authorities.

List of Criminals Involved in Organized Criminal Syndicate Committing Racketeering, Extortion and Fraud on Court Under Color Of Law in Santa Clara County Court:

1. Presiding Judge:

1.1 Presiding Judge Beth McGowen. Department 17, [Old Courthouse \(OCH\)](#), 161 North First Street, San Jose, CA 95113, (408) 882-2280

Criminal activities: Concealed disqualification of THREE family court judges (Lowney, Flint and Towery - [confirmed by PAJAR](#)) and [refused to act on these disqualifications](#); [Refused to transfer case 22FL003144 to another department](#); [Refused to nullify all orders obtained by fraud on court on the case 22FL003144](#); Allowed disqualified judge Stephen Lowney to stay on the case 22FL003144 despite his disqualification due to impermissible conflict of interest, and personal threats that Lowney made against me, Petitioner on the case; Allowed disqualified judge

EXHIBIT A-61 - ITEM 5

LETTER TO COMMISSION ON JUDICIAL PERFORMANCE (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/letter-to-commission-on-judicial-performance-2024-08-15.pdf>

Scan QR Code for instant download of the complete document:



Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
(408) 518 0088
Constantine.Mars@gmail.com
08/14/2024

Commission on Judicial Performance
455 Golden Gate Avenue, Suite 14400
San Francisco, CA 94102-3660
Email: cjp@cjp.ca.gov

**SUBJECT: COMPLAINT AGAINST JUDGES FOR JUDICIAL MISCONDUCT AND
RACKETEERING - SANTA CLARA COUNTY SUPERIOR COURT**

Dear Members of the Commission on Judicial Performance,

I am submitting this formal complaint concerning the [egregious judicial misconduct committed by multiple judges in the Santa Clara County Superior Court](#). These actions involve violations of ethical standards, federal and state laws, and clear abuse of judicial power. The judges implicated are:

1. **Presiding Judge Beth McGowen**
 - o **Misconduct:** Concealed the disqualification of Judges Stephen Lowney, Andrea Flint, and James Towery in case 22FL003144. She allowed these disqualified judges to continue presiding over my case, despite their disqualification due to conflicts of interest and their involvement in racketeering and extortion. She failed to transfer the case to another department, enabling further judicial misconduct.
2. **Judge Stephen Lowney**
 - o **Misconduct:** Engaged in repeated acts of fraud, threats, coercion, and abuse of judicial resources. Despite being disqualified on multiple occasions, he continued to issue retaliatory rulings, including my arrest and a restraining order against my son. His rulings were influenced by bribery and aimed at facilitating the abduction of my son to Ukraine.
3. **Judge Andrea Flint**
 - o **Misconduct:** Despite being disqualified, she committed fraud by issuing court orders that facilitated the abduction of my child, the enforcement of domestic violence, and the falsification of court records. These actions were retaliatory, with the clear intent of obstructing justice.

EXHIBIT A-61 - ITEM 6
LETTER TO DOJ CIVIL RIGHTS DIVISION (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF: <https://marsjustice.io/federal-removal/letters/doj-civil-rights-report-2024-08-15.pdf>

Scan QR Code for instant download of the complete document:



Complainant:

Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
(408) 518-0088
Constantine.Mars@gmail.com

REPORT OF JUDICIAL CORRUPTION AND CIVIL RIGHTS VIOLATIONS IN SANTA CLARA COUNTY SUPERIOR COURT

Details of the Violation:

I am submitting this report to expose extensive judicial corruption and civil rights violations occurring within the Santa Clara County Superior Court. My rights and those of my son, Max Mars, have been repeatedly violated through judicial misconduct, racketeering, and extortion conducted by multiple judges and attorneys.

Summary of Events:

Over the past two years, I have been subjected to a campaign of judicial corruption that includes:

1. **Racketeering and Extortion (RICO Act, 18 U.S.C. § 1961):** Judges Stephen Lowney, Andrea Flint, James Towery, and Presiding Judge Beth McGowen have participated in racketeering schemes by accepting bribes from attorneys Nancy Roberts and Steven Dinneen. These judges have issued fraudulent restraining orders and financial judgments designed to extort money from me and deprive me of my parental rights.
2. **Obstruction of Justice and Retaliation (18 U.S.C. §§ 1503 and 1513):** Despite being disqualified, these judges continued to preside over my case (22FL003144), obstructing justice and retaliating against me for filing complaints and motions to disqualify them. Their retaliatory measures include unlawful arrests, vexatious litigant orders, and restraining orders prohibiting contact with my son.
3. **Deprivation of Rights Under Color of Law (18 U.S.C. § 242):** These judges have abused their positions of power to issue unlawful rulings that violate my civil rights, including the right to due process and equal protection under the law. Their actions have facilitated the international abduction of my son to Ukraine.

EXHIBIT A-61 - ITEM 7
LETTER TO DOJ CIVIL RIGHTS DIVISION (2024-08-15)

ACCESS FULL DOCUMENT

Full PDF:

<https://marsjustice.io/federal-removal/letters/letter-to-ukraine-consulate-general.pdf>

Scan QR Code for instant download of the complete document:



Kostiantyn Mars
211 Hope St 391751
Mountain View, CA 94041
constantine.mars@gmail.com
+1 (408) 518-0088

August 15, 2024

Consulate General of Ukraine in San Francisco
530 Bush Street, Suite 402,
San Francisco, California, USA, 94108
gc_uss@mfa.gov.ua
+1 (415) 398 0240

**Екстрений Запит Щодо Забезпечення Заходів Безпеки Та Заборони Випуска
Нового Паспорта Для Мого Сина Максима Марса**

Шановний Пане Генеральний Консул Дмитро Кушнерук,

До мене поступила інформація що організована злочинність, яка практикує наразі хабарництво, рекет, викрадення дітей та шахрайство одночасно на теренах України та у Сполучених Штатах Америки, намагається скористатися Вашою допомогою щоб випустити новий паспорт для мого сина Максима Марса (дата народження 11/23/2015), та за допомогою цього паспорта нелегально вивезти мою дитину за терени Сполучених Штатів Америки.

Будь-ласка, перевірте та підтвердіть чи є в Генеральному Консульстві активні, нові чи завершені запити на перевипуск паспорту для неповнолітнього громадянина України Максима Марса (дата народження 11/23/2015)?

У разі якщо такий запит є, я прошу вас зупинити випуск паспорту і негайно поінформувати мене і поліцію Сан Франциско.